



Intentional Torts: Assault & Battery

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Overview of the Intentional Torts

- Also known as 'nominate' torts
- Many emerged from the old writ of trespass – direct interference with certain rights:
 - Trespass to the person (battery, assault, false imprisonment)
 - Trespass to land (trespass)
 - Trespass to chattels (conversion, detinue)
- Mostly actionable *per se*
- Narrow in scope, rigid, tend to be static & unchanging
- Role of insurance
- Role of interpersonal responsibility

Intention

- Definition is similar to criminal law
- Intent is not the same as motive
- Motive is irrelevant to most intentional torts, but may:
 - Form part of a defence
 - Be considered at the damages stage
- The intent applies just to the act itself – even if the consequences are not what the defendant intended, they will still be liable for those consequences
- A defendant will be unable to form intent if they do not understand the nature and quality of their acts

Battery

- Battery is a:
 - **Direct**
 - **Intentional**
 - **Physical interference with the person of another**
 - **That is harmful or offensive to a reasonable person**
- Plaintiff does not have to show fault
- Defendant is liable for even remote consequences
- Why these lower protections for the defendant?

1. Direct

- Direct interference = defendant does something, and then interference takes place immediately afterwards
- Indirect (consequential) interference is not a battery = defendant does something, then interference takes place later on as a result
- Interference is direct if it is the immediate consequence of a force set in motion by an act of the defendant
- How were direct and indirect interference distinguished on the facts of *Barker v Barker*?

2. Intentional

- Unintentional acts are not a battery – they usually fall under negligence
- Battery may be easier to prove than negligence
 - No need to prove the defendant acted carelessly or unreasonably
 - No need to show causation or damage
 - Plaintiff just has to establish all the elements of battery
- The intent just has to relate to the touching – does not have to be intent to cause physical harm or offence

3. Physical Interference

- Actual bodily contact is not required
- Plaintiff does not need to be aware of battery at the time it takes place
- Spitting, throwing things, grabbing something the plaintiff is holding or riding on, grabbing clothes – all of these are a battery



4. Harmful or Offensive to a Reasonable Person

- 'Socially acceptable' or 'trivial' physical contact is not a battery
- What about different cultures/perspectives?
- How is the concept of the 'reasonable person' problematic?

Other Issues in Battery

- Foreseeability – defendant is liable for all consequences of their act, not just the foreseeable ones (*Bettel v Yim*)
- Battery and criminal acts – resurgence for tort claims in battery involving institutional abuse and intimate partner violence
 - Defendants are more likely to have assets
 - Is compensation the only aim of such proceedings?
 - What are the benefits of litigation for historical abuse? What are the risks?
 - Consider *Barker v Barker*
- Claims of battery in such cases will often be combined with claims for assault and other torts

Assault

- The immediate threat of a battery
- Potential confusion: assault and battery are under same provision of *Criminal Code*
- Section 265 (1): A person commits an assault when
 - (a) without the consent of another person, he applies force intentionally to that other person, directly or indirectly;
 - (b) he attempts or threatens, by an act or a gesture, to apply force to another person, if he has, or causes that other person to believe on reasonable grounds that he has, present ability to effect his purpose

Elements of Assault

1. Direct
2. Intentional
3. That causes a person to apprehend
[apprehension must be reasonable]
4. Immediate [future or distant threats don't count;
'immediacy' or 'imminence' requirement in abuse cases]
5. Harmful or offensive bodily contact [no need to show any physical damage – the apprehension is enough]

Damages for Assault

- Damages for assault in the absence of battery are usually modest, depending on the circumstances
 - \$750-\$6,000 for assaults as part of a labour dispute (*Mainland Sawmills Ltd v USW Union Local - 1-3567*, 2007 BCSC 1433)
 - Aggravated damages were also awarded
- Damages may be higher if there are aggravating factors
 - \$15,000 general and \$5,000 aggravated for an online terror campaign (*Warman v Grosvenor*, 2008)
- Aggravated damages are awarded in tort where the defendant's conduct causes additional mental distress, humiliation, or injury to feelings/dignity

Defences

- Various defences to the various intentional torts – we are just looking at battery and assault
- Duress and provocation are not defences, but they may be factors in assessing damages
- Why aren't duress and provocation defences?
- Other defences:
 - Consent
 - Self-defence or defence of third parties
 - Defence of property
 - Parental discipline
 - Legal authority
 - Necessity

Consent

- Consent to physical contact is a complete defence to battery
- Consent can be express or implied
- Consent involves issues such as:
 - Consent to medical treatment
 - Informed consent
 - When consent might be vitiated
 - The scope of consent

Malette v Shulman (1990 ONCA)

- What happened?
- What did the plaintiff allege?
- How did the doctor defend himself?
- Role of self-determination
- Role of religious freedom
- Was the amount of damages appropriate?
- Do you agree with the decision?

NO BLOOD TRANSFUSION !

As a God-fearing Christian and a believer of Jehovah's word, the Bible, I hereby demand that blood, in any way, shape or form, is NOT to be fed into my body; however, blood substitutes may be used in case of extreme loss of blood.

'YOU MUST NOT EAT THE BLOOD OF ANY SORT OF FLESH'
LEVITICUS 17:14 NW

Signature _____

Witness _____ (Over)

Emergencies

- Consent is also required in emergencies, i.e. where lifesaving treatment is necessary, but patient is unconscious or incapacitated
- Patient must be unable to consent
- If doctor waits, serious injury/death may result
- A reasonable person would consent and the patient themselves would probably consent
- Consent must be obtained as soon as reasonably possible

Informed Consent

- “The patient must be provided with sufficient information to evaluate the risks and benefits of the proposed treatment and other available options” (*Malette v Shulman*)
- Battery is only available where there is no consent at all, or where doctor has gone beyond consent provided
- Cases where allegation is no *informed* consent should be framed in negligence (*Reibl v Hughes*, [1980] 2 SCR 880)
- Why this distinction?

Norberg v Wynrib (1990 ONCA)

- What happened?
- What did the plaintiff allege?
- How did the doctor defend himself?
- Consent must be informed and also free. It can be vitiated by:
 - Fraud or deceit
 - Duress – see *Barker v Barker*
 - Public policy
- Was the plaintiff free to consent?





Scope of Consent

- Scope of consent can be exceeded. Examples include:
- Sports injury caused by defendant going beyond the rules of the game
- An operation where surgeon removes something other than the plaintiff agreed to
- A fist fight where the defendant suddenly pulls a knife

Other Defences

- Self-Defence and Defence of Third Parties
 - Based on honest and reasonable belief, force used must be reasonable
- Defence of Property
 - Reasonable force may be used, but nothing that causes serious injury or death
- Parental discipline
 - Section 43 of the *Criminal Code* “force must not exceed what is reasonable in the circumstances”
 - *Canadian Foundation for Children*, 2004 1 SCR 76: “minor corrective force of a transient or trifling nature”
- Legal authority
 - Available to law enforcement officers, but only when acting within their legal powers
- Necessity

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Next class:
Small Groups (Fact Pattern)